

SENATE BILL 391

By Hatcher

AN ACT to amend Tennessee Code Annotated, Title 24;
Title 36; Title 37 and Title 40, relative to certified
facility dogs.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 24, Chapter 7, is amended by adding
the following as a new section:

24-7-126.

(a) As used in this section:

(1) "Assistance dog organization" means a nonprofit organization that
sets standards of training for the health, welfare, task work, and oversight of
assistance dogs and assistance dog handlers;

(2) "Certified facility dog" means a trained working dog that has:

(A) Documentation showing that the certified facility dog is a
graduate of an assistance dog organization;

(B) At least two (2) years of training and passed the service dog
public access test;

(C) A current annual certificate of health from a veterinarian
licensed in this state; and

(D) Proof of liability insurance in the minimum amount of five
hundred thousand dollars (\$500,000); and

(3) "Certified handler" means a person who has received training from an
assistance dog organization and has received training on the protocols and
policies of legal proceedings and the role of the certified facility dog and certified

handler to ensure that there is no interference with the collection of evidence, presentation of testimony, or administration of justice.

(b) The court may allow a certified facility dog to accompany a victim or other witness while testifying or in other court proceedings for the purpose of reducing the stress of the witness and to enhance the ability of the court to obtain full and accurate testimony.

(c) If a court allows the use of a certified facility dog to accompany a witness on the witness stand during a court proceeding in which a jury has been empaneled, then:

(1) The certified facility dog must be accompanied by a certified handler to and from the witness stand outside the presence of the jury and the certified handler must maintain a position in the courtroom within view of the witness stand during the witness's testimony; and

(2) The court shall inform the jury of the presence of the certified facility dog and instruct the jury that the presence of the certified facility dog shall not be construed to prejudice any party.

(d) During trial proceedings, the court must take all necessary precautions to obscure the presence of the certified facility dog from the jury as much as possible.

(e) A certified facility dog must wear visible markings identifying the dog as a certified facility dog while working.

(f) Prior to the use of a certified facility dog in a court proceeding, the party seeking to use the certified facility dog must file a motion with the court requesting approval of the use of the certified facility dog. The court may examine and confirm the credentials of the certified facility dog and the certified handler.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.